

**SUBSTITUTE FOR
SENATE BILL NO. 909**

A bill to amend 2016 PA 343, entitled
"Wrongful imprisonment compensation act,"
by amending sections 2, 4, 5, and 7 (MCL 691.1752, 691.1754,
691.1755, and 691.1757), section 7 as amended by 2020 PA 43.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 2. As used in this act:

2 (a) "Charges" means the criminal complaint filed against the
3 plaintiff by a county prosecutor or the attorney general on behalf
4 of the people of this state that resulted in the conviction and
5 imprisonment of the plaintiff that are the subject of the claim for
6 compensation under this act.

7 (b) "Municipality" means a municipal corporation organized or
8 existing under the laws of this state, including a home rule city,



1 **statutory city, village, or township. Municipality includes an**
2 **agency or department of the municipality and an officer of the**
3 **municipal corporation acting in an official capacity. Municipality**
4 **does not include a county, an agency or department of a county, or**
5 **a county official acting in an official capacity.**

6 **(c) ~~(b)~~**"New evidence" means any evidence that was not
7 ~~presented in the proceedings leading to plaintiff's conviction, to~~
8 **a trier of fact during a proceeding that determined guilt,**
9 including new testimony, expert interpretation, the results of DNA
10 testing, or other test results relating to evidence that was
11 ~~presented in the proceedings leading to plaintiff's conviction. to~~
12 **a trier of fact when guilt was decided.** New evidence does not
13 include a recantation by a witness unless there is other evidence
14 to support the recantation or unless the prosecuting attorney for
15 the county in which the plaintiff was convicted or, if the
16 department of attorney general prosecuted the case, the attorney
17 general agrees that the recantation constitutes new evidence
18 without other evidence to support the recantation.

19 **(d) ~~(e)~~**"Plaintiff" means the individual making a claim for
20 compensation under this act. **Plaintiff includes a trustee or**
21 **conservator for that individual if the individual is not competent**
22 **to act as plaintiff.** Plaintiff does not include the estate of ~~an a~~
23 **deceased** individual entitled to make a claim for compensation under
24 this act, the personal representative of the estate, or any heir,
25 devisee, beneficiary, or other person who is entitled under other
26 law to pursue a claim for damages, injury, or death suffered by the
27 individual.

28 **(e) ~~(d)~~**"State correctional facility" means a correctional
29 facility maintained and operated by the department of corrections.



(f) ~~(e)~~ ~~"This~~ **For the purpose of state court actions related to this act, "this** state" means the state of Michigan and its political subdivisions, and the agencies, departments, commissions, and courts of this state and its political subdivisions.

Sec. 4. (1) In an action under this act, the plaintiff shall attach to his or her verified complaint documentation that establishes ~~all of the following:~~

~~(a) The plaintiff was convicted of 1 or more crimes under the law of this state, was sentenced to a term of imprisonment in a state correctional facility for the crime or crimes, and served at least part of the sentence.~~

~~(b) The plaintiff's judgment of conviction was reversed or vacated and either the charges were dismissed or on retrial the plaintiff was found to be not guilty.~~

~~(c) New evidence demonstrates that the plaintiff was not the perpetrator of the crime or crimes and was not an accessory or accomplice to the acts that were the basis of the conviction and resulted in a reversal or vacation of the judgment of conviction, dismissal of the charges, finding of not guilty, or gubernatorial pardon.~~ **the facts that the plaintiff alleges entitle the plaintiff to judgment under section 5.**

(2) A complaint filed under this section must be verified by the plaintiff.

(3) A copy of a complaint filed under this section must be served on the attorney general and on the prosecuting attorney for the county in which the plaintiff was convicted. The attorney general and the prosecuting attorney may answer and contest the complaint. **The prosecuting attorney shall file an appearance within 60 days if the prosecuting attorney wishes to participate further**



1 in the action.

2 (4) An answer to a complaint filed under this section may be
3 served and filed not later than 60 days after service of the
4 complaint, with the opportunity to request additional time
5 extensions if there is a showing of good cause, in order for the
6 attorney general to determine whether compensation under this act
7 is appropriate before formal discovery begins.

8 (5) ~~(4)~~—If the plaintiff's conviction was for an assaultive
9 crime or a serious misdemeanor, the prosecuting attorney shall
10 notify the victim of the assaultive crime or serious misdemeanor of
11 the application in the same manner as is required for an
12 application to have a conviction set aside under section 22a or 77a
13 of the William Van Regenmorter crime victim's rights act, 1985 PA
14 87, MCL 780.772a and 780.827a. The prosecuting attorney shall give
15 the victim notice under this subsection by first-class mail sent to
16 the victim's last known address. The victim or victim's
17 representative has the right to appear at any proceeding under this
18 act concerning the complaint and to make a written or oral
19 statement.

20 (6) ~~(5)~~—The plaintiff, the attorney general, and the
21 prosecuting attorney for the county in which the plaintiff was
22 convicted may conduct discovery in an action under this act.
23 **Discovery must not be conducted before the attorney general files**
24 **an answer.**

25 Sec. 5. (1) In an action under this act, the plaintiff is
26 entitled to judgment in the plaintiff's favor if the plaintiff
27 proves all of the following by ~~clear and convincing~~ **a preponderance**
28 **of the** evidence:

29 (a) The plaintiff was convicted of 1 or more crimes under the



1 law of this state, was sentenced to a term of imprisonment in a
2 state correctional facility for the crime or crimes, and served at
3 least part of the sentence, **or was committed to a residential**
4 **mental health facility in relation to the conviction.**

5 (b) **One of the following:**

6 (i) The plaintiff's judgment of conviction was reversed or
7 vacated and either the charges were dismissed or the plaintiff was
8 determined on retrial to be not guilty. However, the plaintiff is
9 not entitled to compensation under this act if the plaintiff was
10 convicted of another criminal offense arising from the same
11 transaction and either that offense was not dismissed or the
12 plaintiff was convicted of that offense on retrial.

13 (ii) **The plaintiff received a gubernatorial pardon on the basis**
14 **of actual innocence for the crime for which the plaintiff was**
15 **incarcerated.**

16 (c) **One of the following:**

17 (i) New evidence demonstrates that the plaintiff did not
18 perpetrate the crime and was not an accomplice or accessory to the
19 acts that were the basis of the conviction, ~~results and the new~~
20 **evidence either resulted** in the reversal or vacation of the charges
21 in the judgment of conviction or **resulted in** a gubernatorial pardon
22 ~~, and results in either dismissal of all of the charges or a~~
23 ~~finding of not guilty on all of the charges on retrial.~~ **for the**
24 **crime for which the plaintiff was incarcerated.**

25 (ii) **The reversal or vacation of the judgment of conviction was**
26 **on the basis of insufficient evidence supporting the conviction,**
27 **and the plaintiff did not perpetrate the crime and was not an**
28 **accomplice or accessory to the acts that were the basis of the**
29 **conviction.**



1 (iii) New evidence was presented to the court that reversed or
2 vacated the plaintiff's conviction, but relief was granted on
3 another basis, and the new evidence demonstrates that the plaintiff
4 did not perpetrate the crime and was not an accomplice or accessory
5 to the acts that were the basis of the conviction.

6 (2) In determining whether the plaintiff has met his or her
7 burden under subsection (1) at any stage of the proceedings,
8 including at trial, the court may consider the following:

9 (a) The entire record of the plaintiff's criminal case, which
10 includes the lower court records, the plea or trial transcripts,
11 the appellate record, and the record of any postconviction
12 proceedings.

13 (b) Evidence that was seized or obtained in violation of the
14 Fourth Amendment of the United States Constitution or section 11 of
15 article I of the state constitution of 1963.

16 (3) In exercising its discretion regarding the weight and
17 credibility of the evidence presented by the parties, the court
18 shall give due consideration to the difficulties of proof caused by
19 the passage of time, the loss or destruction of evidence, the death
20 or unavailability of witnesses, and other factors not caused by the
21 parties. The court shall not find a witness incredible who
22 testified at the plaintiff's criminal trial or in post-trial
23 proceedings based solely on the fact that the witness is not
24 testifying at the trial held on the plaintiff's claim under this
25 act.

26 (4) ~~(2)~~ Subject to subsections ~~(4) and (5)~~, **(6) and (7)**, if a
27 court finds that a plaintiff was wrongfully convicted and
28 imprisoned, the court shall award compensation as follows:

29 (a) Fifty thousand dollars for each year, ~~from the date~~



1 **prorated as provided in this subdivision as appropriate,** the
 2 plaintiff was imprisoned, ~~until the date the plaintiff was released~~
 3 ~~from prison, including time served in pretrial detention,~~
 4 regardless of whether the plaintiff was released from imprisonment
 5 on parole or because the maximum sentence was served. For
 6 incarceration of less than a year in prison, this amount is
 7 prorated to 1/365 of \$50,000.00 for every day the plaintiff was
 8 incarcerated. ~~in prison.~~

9 (b) Reimbursement of any amount awarded and collected by this
 10 state under the state correctional facility reimbursement act, 1935
 11 PA 253, MCL 800.401 to 800.406.

12 (c) Reasonable attorney fees incurred in an action under this
 13 act. ~~All~~ **Both** of the following apply to attorney fees under this
 14 act:

15 ~~(i) The court shall not award attorney fees unless the~~
 16 ~~plaintiff has actually paid the amount awarded to the attorney.~~

17 ~~(ii) It is not necessary that the plaintiff pay the attorney~~
 18 ~~fees before an initial award under this act. The court may award~~
 19 ~~attorney fees on a motion brought after the initial award.~~

20 ~~(i) (iii)~~ The attorney fees must not exceed 10% of the total
 21 amount awarded under subdivisions (a) and (b) or \$50,000.00,
 22 whichever is less, plus expenses.

23 ~~(ii) (iv)~~ An award of attorney fees under this act may not be
 24 deducted from the compensation awarded the plaintiff, and the
 25 plaintiff's attorney is not entitled to receive additional fees
 26 from the plaintiff.

27 **(d) Standard annuity payments to compensate the plaintiff an**
 28 **additional \$50,000.00 for each year the plaintiff was imprisoned,**
 29 **including time served in pretrial detention, prorated in the same**



1 way as described in subdivision (a). All of the following apply to
2 annuity payments under this subdivision:

3 (i) The annuity payments must be payable in equal monthly
4 installments for the length of time the plaintiff was imprisoned,
5 including time served in pretrial detention.

6 (ii) The annuity payments must be based on a 5% per annum
7 interest rate and other actuarial factors within the discretion of
8 the department of treasury.

9 (iii) The annuity payments may not be accelerated, deferred,
10 increased, or decreased.

11 (iv) The plaintiff may not sell, mortgage, or otherwise
12 encumber or anticipate the payments, wholly or partly, by
13 assignment or otherwise.

14 (5) ~~(3)~~—An award under subsection ~~(2)~~ (4) is not subject to a
15 limit on the amount of damages except as stated in this act.

16 (6) ~~(4)~~—Compensation may not be awarded under subsection ~~(2)~~
17 (4) for any time during which the plaintiff was imprisoned under a
18 concurrent or consecutive sentence for another conviction, whether
19 running before or after the sentence on the conviction that is the
20 basis of the claim. If the plaintiff was on parole for a prior
21 offense at the time of the wrongful conviction and parole was
22 revoked solely on the basis of the wrongful conviction, any
23 concurrent or consecutive sentence relating to the prior offense is
24 not covered by this subsection.

25 (7) ~~(5)~~—Compensation may not be awarded under subsection ~~(2)~~
26 (4) for any injuries sustained by the plaintiff while imprisoned.
27 The making of a claim or receipt of compensation under this act
28 does not preclude a claim or action for compensation because of
29 injuries sustained by the plaintiff while imprisoned.



1 (8) ~~(6)~~—In the discretion of the court, the total amount
 2 awarded under subsection ~~(2)(a)~~ **(4)(a)** and (b) may be paid to the
 3 plaintiff in a single payment or in multiple payments. If the court
 4 orders the compensation to be paid in multiple payments, the
 5 initial payment must be 20% of the total amount awarded or more and
 6 the remainder of the payments must be made over not more than 10
 7 years.

8 (9) ~~(7)~~—An award of compensation, **or a compromise or**
 9 **settlement of a claim**, under this act is not a finding of
 10 wrongdoing against anyone. ~~An~~ **The granting or denial of a claim for**
 11 **an award of compensation, or a compromise or settlement of a claim**,
 12 under this act is not admissible in evidence in a civil action that
 13 is related to the investigation, prosecution, or conviction that
 14 gave rise to the wrongful conviction or imprisonment.

15 (10) ~~(8)~~—The acceptance by the plaintiff of an award under
 16 this act, or of a compromise or settlement of the claim, must be in
 17 writing and, unless it is procured by fraud, is final and
 18 conclusive on the plaintiff ~~, constitutes a complete release of all~~
 19 ~~claims against this state,~~ and is a complete bar to any action in
 20 state court by the plaintiff against this state based on the same
 21 subject matter. However, the acceptance by the plaintiff of an
 22 award under this act, or of a compromise or settlement of the
 23 plaintiff's claim, does not operate as a waiver of, or bar to, any
 24 action **and recovery** in federal court against ~~an~~ **a municipality or**
 25 individual alleged to have been involved in the investigation,
 26 prosecution, or conviction that gave rise to the wrongful
 27 conviction or imprisonment.

28 (11) ~~(9)~~—A compensation award under subsection ~~(2)~~ **(4)**, **or**
 29 **compensation under a compromise or settlement of a claim under this**



1 **act**, may not be offset by any of the following:

2 (a) Expenses incurred by this state or any political
3 subdivision of this state, including, but not limited to, expenses
4 incurred to secure the plaintiff's custody or to feed, clothe, or
5 provide medical services for the plaintiff while imprisoned,
6 including expenses required to be collected under the state
7 correctional facility reimbursement act, 1935 PA 253, MCL 800.401
8 to 800.406. The attorney general is specifically excused from
9 complying with the state correctional facility reimbursement act,
10 1935 PA 253, MCL 800.401 to 800.406.

11 (b) The value of any services awarded to the plaintiff under
12 this section.

13 (c) The value of any reduction in fees for services awarded to
14 the plaintiff under this act.

15 **(12) ~~(10)~~—An award under subsection ~~(2)~~—(4), or compensation**
16 **under a compromise or settlement of a claim under this act**, is not
17 subject to income taxes.

18 **(13) ~~(11)~~—A compensation award, or compensation under a**
19 **compromise or settlement of a claim**, under this act is subject to
20 the payment of child support, including child support arrearages,
21 owed by the plaintiff. The plaintiff remains liable for any child
22 support or arrearage under the office of child support act, 1971 PA
23 174, MCL 400.231 to 400.240, and the support and parenting time
24 enforcement act, 1982 PA 295, MCL 552.601 to 552.650, except for
25 any child support or arrearage that erroneously accrued while the
26 plaintiff was imprisoned. Child support must be deducted from an
27 award, **or compensation under a compromise or settlement of a claim**,
28 under this act before the plaintiff receives any of the money from
29 the award, **compromise, or settlement**. This subsection does not



1 affect any ongoing child support obligation of the plaintiff.

2 **(14) ~~(12)~~**—This act does not impair or limit the right of a
3 state or local government to collect a debt of a plaintiff from the
4 plaintiff's award of compensation, **or compensation under a**
5 **compromise or settlement of a claim**, under this act.

6 **(15) ~~(13)~~**—An award of compensation, **or compensation under a**
7 **compromise or settlement of a claim**, under this act is subject to
8 setoff or reimbursement for damages **received directly by the**
9 **plaintiff that were** obtained for the wrongful conviction or
10 imprisonment from any other person **or political subdivision, after**
11 **the damage award is reduced for attorney fees.**

12 **(16) ~~(14)~~**—If a court determines that a plaintiff was
13 wrongfully convicted and imprisoned, the court shall enter an order
14 that provides that any record of the arrest, fingerprints,
15 conviction, and sentence of the plaintiff related to the wrongful
16 conviction be expunged from the criminal history record. **The**
17 **parties may stipulate to the entry of an order under this**
18 **subsection without an award of compensation under subsection (4) (a)**
19 **and (d).** A document that is the subject of an order entered under
20 this subsection is exempt from disclosure under the freedom of
21 information act, 1976 PA 442, MCL 15.231 to 15.246.

22 Sec. 7. (1) An action for compensation under this act must be
23 commenced within 3 years after **the** entry of a verdict, order, ~~or~~
24 judgment, **or pardon** as the result of an event described in section
25 ~~4(1)(b).~~ **5(1)(b).** Any action by this state challenging or appealing
26 a verdict, order, or judgment entered as the result of an event
27 described in section ~~4(1)(b)~~ **5(1)(b)** tolls the 3-year period.

28 (2) An individual convicted, imprisoned, and released from
29 custody before March 29, 2017 must commence an action under this



1 ~~act within 18 months after the effective date of the 2020~~
2 ~~amendatory act that amended this section.~~**before September 3, 2021.**

3 **(3) An individual may, irrespective of any other provision of**
4 **this act, bring a claim within 18 months after the effective date**
5 **of the amendatory act that added this subsection, if the individual**
6 **can show that he or she qualifies for an award as a result of**
7 **section 5(1)(c)(ii) or (iii).**